

2024-01404350 Motion to Set Aside/Vacate Default OSC Re Monetary Sanctions CMC	Plaintiff/Cross-Defendant Renita R Turner ("Plaintiff") moves pursuant to Code of Civil Procedure section 473(b) to set aside the default entered against her on the first amended cross-complaint. Plaintiff seeks discretionary relief under section 473(b). Discretionary relief under section 473, subdivision (b) is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) A motion for relief under section 473(b) "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted" (Code Civ. Proc., § 473, subd. (b).) However, this requirement is not jurisdictional; substantial compliance may suffice. (<i>Carmel, Ltd. v. Tavoussi</i> (2009) 175 Cal.App.4th 393, 403 [finding substantial compliance where counsel offered proposed answer at motion hearing rather than serving it with moving papers].) A motion for discretionary relief must be made "within a reasonable time but in no instance exceeding six months after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) The motion is timely. The court entered Plaintiff's default on 11/10/25. (ROA 42.) Plaintiff served and filed the instant motion 5/5/26, within the six month deadline. (ROA 50.) In the motion, Plaintiff contends that after the court sustained the demurrer to the cross-complaint with leave to amend, her attorney, Bahram Madaen, never received the amended cross-complaint; Mr. Madaen was surprised when he received the request for default; after inquiry, Mr. Madaen received a copy of the amended cross-complaint and saw that it had the same defects as before. (Motion at p. 3:22-26.) Plaintiff also states in the motion that Mr. Madaen believed that the defendant abandoned his claims for a cross-complaint since he did not see the actual documents within the time allowed by the court. (Motion at p. 7:2-5.) Mr. Madaen does not attest to all these facts in his attached declaration. Mr. Madaen states he received a
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		copy of the amended cross-complaint after Defendant filed the request for entry of default, reviewed it and noted what appeared to be legal insufficiencies. (Madaen Decl., ¶¶ 3, 4.) Mr. Madaen does not however state that he did not receive the amended complaint before Plaintiff's default was entered, he was surprised by the default, or that he believed Defendant abandoned his claims for a cross-complaint. These missing statements are especially critical since the proof of service attached to the amended cross-complaint indicates Mr. Madaen was served by email on 9/8/25. (ROA 38.) Thus, Plaintiff failed to establish mistake, inadvertence, surprise or excusable neglect. Plaintiff also failed to file a proposed responsive pleading. The motion is denied.
9	Azami v. LAD Mission Viejo – JLR, Inc. 2024-01374785 Motion for Sanctions	Plaintiff Nahid Azami's Motion for Sanctions is DENIED. Sanctions pursuant to Code of Civil Procedure section 128.7 are permissive and the Court is given discretion to evaluate the circumstances to determine if sanctions are warranted. (Code Civ. Proc., § 128.7(c).) After considering the relevant circumstances, the Court finds Defendant acted with due diligence by attempting to informally resolve the dispute by requesting a stipulation to amend its answer to remove the bankruptcy bar affirmative defense. Plaintiff instead refused to agree to the stipulation and instead brought this Motion. Further, Defendant has now sought leave to amend its answer as required by the Code. The hearing is set for October 19, 2026, after this hearing. Accordingly, the Court determines sanctions are not warranted.